UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

NICHOLAS A. VENTURA,

Plaintiff,

v.

Randstad US LLC; Randstad North America Inc.; Hirewell LLC; Korn Ferry; Korn Ferry (US)

Defendants

Case No.: 5:25-CV-02931-SRM-DTB

PLAINTIFF'S OPPOSITION TO DEFENDANT RANDSTAD'S MOTION TO DISMISS FAC

Time: 13:30
Dept: Courtroom 5D
Complaint Filed: September 25, 2025
FAC Filed: May 21, 2026
Trial Date: [Not Set]

Date: **07/22/2025**

Nicholas A.Ventura

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Opposition

I. INTRODUCTION

Defendants Randstad US, LLC and Randstad North America, Inc. (collectively, "Randstad" or *"Randsatd"*) move to dismiss Plaintiff's First Amended Complaint ("FAC") under Rules 9(b) and 12(b)(6). It is unknown whether this is on behalf of both parties or Randstad alone, where Hirewell is still expected to be legally as invested in this case. The Court should deny the motion on two independent grounds without ever reaching the merits.

First, their motion is procedurally defective. Randstad has not complied with Local Rule 7-3 or this Court's Civil Standing Order (Dkt. 16). By counsel's own sworn admission, the only conferences held on the FAC-directed motion consisted of (i) a phone call on October 27, 2025 that concerned the original Complaint, filed nearly eight months before the FAC, and (ii) an email exchange on May 18, 2026. See Chapman Decl., Dkt. 64 ¶¶ 2, 4. Neither satisfies the Standing Order's requirement that counsel confer "by videoconference or in person," and that "[e]mail correspondence is insufficient." Dkt. 16 at 12–13. This Court has already applied that same requirement to strike three of Plaintiff's motions on March 17, 2026—the same day. See Dkt. 44. Consistency of application, and the equal treatment of the *pro se* party the Rules expressly demand, compel the same outcome here.

Second, the merits cannot fairly be adjudicated on the present record. Plaintiff has developed independent investigative evidence — exported text-message affiliations, reverse phone look-ups traced to Bandwidth.com and Telnyx LLC, and preservation notices served on multiple telecommunications carriers — that establishes affiliation, agency, and ratification well beyond what the FAC alone conveys. See Ventura Decl. ¶¶ 6–12. What the record lacks is the two-step verification Plaintiff cannot compel without subpoena authority: (a) porting-transaction logs from Lumen and Bandwidth showing the true subscriber identities behind the phone numbers used in the scheme, and (b) the

contemporaneous account and IP records confirming who directed those numbers during the operative window. Randstad's Rule 9(b) argument turns on the absence of the very facts that early, court-supervised discovery would surface.

Plaintiff therefore requests that the Court (1) deny the motion for noncompliance with Local Rule 7-3 and the Standing Order; (2) issue an Order to Compel a compliant, videoconference or in-person meet-and-confer within fourteen (14) days; (3) alternatively, issue an Order to Compel Stipulation on Early Discovery pursuant to Rule 26(d)(1); or (4) in the further alternative, set an early Rule 16 Scheduling Conference to place this case on a manageable procedural track. Plaintiff intends to file a separate, fully briefed Motion to Compel Early Discovery as the primary vehicle for the specific subpoena authority required.

II. RELEVANT PROCEDURAL BACKGROUND

Plaintiff filed his original Complaint in the Superior Court of California, County of San Bernardino, on September 25, 2025. Defendants removed the action to this Court, and Defendant orn Ferry filed a motion to dismiss which Randstad joined. On March 17, 2026, the Court struck three of Plaintiff's motions — the Motion to Remand (Dkt. 11), Motion to Amend Complaint (Dkt. 24), and Motion for Leave to Serve Early Third-Party Subpoenas (Dkt. 39) — for failure to comply with Local Rule 7-3 and the Standing Order's requirement of a videoconference or in-person conference. Dkt. 44 at 2. On March 18, 2026, Plaintiff promptly initiated the compliant meet-and-confer process by proposing ten (10) discrete videoconference time blocks over five (5) business days to all counsel of record. See Ventura Decl. ¶ 5 & Ex. A.

The Court subsequently granted orn Ferry's motion to dismiss with leave to amend, and Plaintiff filed the FAC on May 21, 2026 (Dkt. 62). Randstad filed the instant motion (Dkt. 64) on une 11, 2026. In the Notice of Motion, counsel represents general

III. LEGAL STANDARD

On a Rule 12(b)(6) motion, the court must accept all well-pleaded factual allegations as true and construe them in the light most favorable to the plaintiff. *Manzarek v. St. Paul Fire & Marine Ins. Co.*, 519 F.3d 1025, 1031 (9th Cir. 2008). A pro se pleading, "however inartfully pleaded," must be "liberally construed" and "held to less stringent standards than formal pleadings drafted by lawyers." *Erickson v. Pardus, 551 U.S. 89, 94 (2007)* (per curiam); accord *Hebbe v. Pliler, 627 F.3d 338, 342 (9th Cir. 2010)*.

Where Rule 9(b) applies, its particularity requirement is relaxed "when the facts constituting the fraud are peculiarly within the opposing party's knowledge," provided the plaintiff's allegations are "accompanied by a statement of the facts upon which the belief is founded." *Neubronner v. Milken, 6 F.3d 666, 672 (9th Cir. 1993)*. And courts routinely permit limited early discovery under Rule 26(d)(1) upon a showing of "good cause," particularly where identifying information is uniquely in the possession of third-party service providers. See *Semitool, Inc. v. Tokyo Electron Am., Inc., 208 F.R.D. 273, 276 (N.D. Cal. 2002)*; *UMG Recordings, Inc. v. Doe, No. C 08-1193, 2008 WL 4104207, at *4 (N.D. Cal. Sept. 4, 2008)*.

The Court's Standing Order and Local Rule 7-3 apply with equal force to all parties and all counsel, including represented parties and pro se litigants alike. See Dkt. 16 at 12; C.D. Cal. R. 83-2.2.3 ("Any person appearing pro se is required to comply with these Local Rules."). Each Columbia factors were passed in the February request for Early discovery and this remains the same. *Columbia Insurance Co. v. seescandy.com, 185 F.R.D. 573, 578–80 (N.D. Cal. 1999).*

IV. ARGUMENT

A. The Motion Must Be Denied Because Randstad Failed to Comply with Local Rule 7-3 and the Court's Standing Order

The Standing Order could not be more explicit. Counsel "must meet and confer either by videoconference or in person. Email correspondence is insufficient." Dkt. 16 at 12–13. This has been reinforced countless times in this case. The moving party "must include a truthful representation of full compliance with Local Rule 7-3 in the signed notice of motion, stating that the parties 'thoroughly discussed the substance and potential resolution of the filed motion [by videoconference or in person].'" Id. Failure to comply "may result in an order to show cause re: sanctions — including, as appropriate, striking or denying the motion, deeming the motion unopposed, and/or awarding monetary sanctions." Id.

This Court has already applied that standard. On March 17, 2026, it struck three of Plaintiff's motions because "Plaintiff filed the Motions without including a statement articulating that the parties met and conferred or that he attempted to contact Defendants prior to filing the Motions." Dkt. 44 at 2. The Court expressly noted: "[a]ny person appearing pro se is required to comply with these Local Rules," quoting C.D. Cal. R. 83-2.2.3. Id. Randstad's motion suffers from apparently basic local requirements to contest in the jurisdiction. Neither of the two meet and conferssatisfied the Standing Order:

i. **The October 27, 2025 phone conference.** This call preceded the FAC by nearly eight months and concerned the original Complaint. See Chapman Decl. ¶ 2. A conference regarding a superseded pleading cannot satisfy Local Rule 7-3 as to a motion attacking a different, amended pleading. The very purpose of the rule — to "attempt to obviate the need for a motion and thus avoid unnecessary Court intervention," Dkt. 16 at 12 —is defeated when the conference addresses a document that no longer operates.

ii. **The May 18, 2026 email exchange.** The Standing Order forecloses *reliance* on email in unambiguous terms: "Email correspondence is

insufficient." Dkt. 16 at 12–13. This Court reiterated the point in Dkt. 44 at 2. The Notice of Motion nevertheless carries a representation of Local Rule 7-3 compliance. On the Chapman Declaration's own terms, that representation cannot be reconciled with the Standing Order. If the same rule that stripped Plaintiff of three motions is to be applied consistently — as due process and the Local Rules require — Randstad's motion must be denied, or in the alternative struck without prejudice pending a compliant conference. Any other result would create a two-tier system of procedural enforcement.

Plaintiff underscores that he has, at every juncture since the March 17 Order, sought a compliant conference. On March 18, 2026, he circulated ten (10) videoconference blocks across five (5) business days to all defense counsel. See Ventura Decl. ¶ 5 & Ex. A. The record reflects a documented pattern of Plaintiff seeking conference and defense counsel treating the process as a formality — briefly engaging by phone or email and moving on to unilateral filing. That is not "thorough[]" discussion "in good faith." Dkt. 16 at 12.

B. Good Cause Remains Protective for Early Discovery Under Rule 26(d)(1)

Even were the Court inclined to reach the merits of the motion, the fair adjudication of Randstad's Rule 9(b) arguments requires the limited early discovery Plaintiff has repeatedly sought. Randstad's central refrain — that Plaintiff cannot connect the individuals who defrauded him to Randstad itself — asks the Court to hold Plaintiff to a particularity standard while simultaneously denying him the only tools capable of producing that particularity. The Ninth Circuit does not endorse that trap. See *Neubronner, 6 F.3d at 672* (Rule 9(b) relaxed where facts "peculiarly within the opposing party's knowledge").

Plaintiff has already performed substantial investigative work independent of any court

process. See Ventura Decl. ¶¶ 6–12. He has:

a) exported and organized WhatsApp and SMS message data reflecting the affiliation between the actor identifying as "Annie" (using the number ending 8533) and a broader group chat operating under the "Kurve.Fun" umbrella, tied by reverse look-up to Bandwidth.com and Telnyx LLC subscriber ranges (see Suspect List, Pl.'s Ex. O);

b) served preservation notices on multiple telecommunications carriers, including T-Mobile, Lumen, and Bandwidth.com;

c) received a written response from T-Mobile stating that subscriber and transactional records would only be produced pursuant to lawful subpoena;

d) received guidance from Lumen identifying porting-transaction logs — records of phone-number transfers between carriers during the operative window — as the location of the subscriber-identity information necessary to complete the evidentiary chain; and

e) received no substantive response from Bandwidth.com, whose customer-service portal has systematically closed Plaintiff's tickets without adjudication, despite Bandwidth being the identified VoIP infrastructure across the majority of the numbers at issue.

What remains is a two-step verification that no private party can accomplish without subpoena authority: first, to compel production of the porting-transaction logs from Lumen and Bandwidth for the period April through November 2024; and second, to compel the corresponding subscriber, account, and IP records so that the natural persons behind those numbers, and their contemporaneous conduct, can be identified. That evidence is materially relevant not only to this case but, on its face, to any federal law-enforcement inquiry into wire-fraud and money-laundering activity conducted through the same infrastructure — a point of independent public interest regardless of the ultimate liability of these Defendants.

The *Semitool* factors are satisfied. The requests are narrowly tailored to third-party carriers; they target time-sensitive records that carriers routinely destroy on rolling retention schedules; and no less-intrusive alternative exists. See *Semitool, 208 F.R.D. at 276*. Early discovery here vindicates Rule 1's command that the Rules be construed to secure "the just, speedy, and inexpensive determination of every action." Fed. R. Civ. P. 1.

C. Requested Relief

Plaintiff respectfully requests that the Court enter one or more of the following forms of relief, in the order presented:

1. **Deny Randstad's Motion to Dismiss** for failure to comply with Local Rule 7-3 and the Court's Civil Standing Order (Dkt. 16 at 12–13), consistent with the Court's prior application of that requirement in Dkt. 44;
2. **Order the parties to conduct a compliant meet-and-confer** by videoconference or in person within fourteen (14) days, addressing (a) the substance of the FAC-directed motion, and (b) Plaintiff's proposed stipulation on early discovery;
3. **Order Defendants to stipulate to early discovery** pursuant to Federal Rule of Civil Procedure 26(d)(1), for a period of thirty (30) to sixty (60) days, limited to third-party subpoenas directed to identified telecommunications carriers; or
4. **Set an early Rule 16 Scheduling Conference** to establish a case management order and place this case on a manageable procedural track.

Plaintiff further advises the Court that he intends to file, on his own initiative, a separately noticed Motion to Compel Early Discovery which will provide the full evidentiary showing, proposed subpoena language, and preservation-notice record supporting the specific subpoena authority requested. The present Opposition seeks only the threshold procedural relief above.

V. CONCLUSION

For the reasons stated, Plaintiff respectfully requests that Randstad's Motion to Dismiss be denied without prejudice to refile only upon a certified, compliant meet-and-confer, and that the Court enter one or more of the alternative forms of relief set out above.

Dated: July 22, 2026

Respectfully submitted,

/s/ Nicholas A. Ventura

Nicholas A. Ventura

Plaintiff, In Pro Per